Fort Bend County District Court

Cause No. 2024-CV-0002

Eric Wells, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-4-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and eevry allegation contained in Plaintiff's Original Petition, except those allegaitons specifically admitted herein, and demands strict proof theerof as required by the Texas Rules of Civil Procedure. Defendant further denies that Plaintiff is entitled to any of the relief requested in the Petition.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, the collision was the result of Plaintiff's own negligence, including failure to keep a proper lookout, failure to control speed, and failure to maintain a single lane of travel. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, Plaintiff failed to mitigate damages by not following reasonable medical advice and by delaying treatment without justification. Any recovery must be reduced accordingly.

Third, the injuries and damages claimed were not proximately caused by the subject collision, in whole or in part, because they arose from preexisting conditions or subsequent unrelated events, and Defendant is entitled to a credit for any settlement paid by any other responsible third party.